

(2) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

CRC 3.1362(d).

Plaintiff has provided evidence of reasonable efforts to locate a valid address. There is a proof of service on file indicating that Plaintiff has been timely served by mail at her last known address. Defendant was served electronically. The Court finds that the matter has been properly noticed.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff's counsel has provided evidence that there is an irreparable breakdown in the attorney-client relationship.

The motion is **GRANTED**. Counsel provided a proposed Order that will be modified by the Court to include the correct future hearing date. Quill and Arrow, LLP will be relieved upon the filing of the Notice of Entry of Order. A future hearing date will be addressed at 9:00 a.m. on the Resolution Review Calendar.

IN RE: RUIZ

CASE NUMBER: 26CV-0210907

Tentative Ruling on Petition for Change of Name: Petitioner Jordan Anthony Ruiz seeks to change his name to Jordan Anthony Cross. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on July 22, 2026 to Plaintiff Christine L. Seraquiel, in pro per, for failure to timely serve per CRC 3.110(b), failure to timely seek entry of default per CRC 3.110(g), and failure to timely prosecute. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on September 8, 2025 and a valid Proof of Service of Summons has not been filed for Defendant Shaun Michael Carpenter. Proof of Service of Summons was filed for Defendant Jeffery Del Vecchio on September 22, 2025, however, no Request for Entry of Default has been filed. "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed." CRC 3.110(g). Plaintiff did not file a written response to the Order to Show Cause Re: Dismissal or a previous Order to Show Cause Re: Sanctions. Monetary sanctions were imposed on July 22, 2026 and have not been paid.

Without sufficient excuse for the delay and because prior sanctions have been ineffective in gaining compliance with the California Rules of Court, the matter is dismissed without prejudice pursuant to Gov. Code § 68608(b). The clerk is directed to vacate any future dates and close the file.